JUSTICE THOMAS, concurring.

When you lose in trial court, you go to an appeals court. The so-called *Rooker-Feldman* doctrine reflects that commonsense understanding. See *Rooker* v. *Fidelity Trust Co.*, 263 U. S. 413 (1923); *District of Columbia Court of Appeals* v. *Feldman*, 460 U. S. 462 (1983). At its core, the doctrine says that parties who lose in state trial court do not get to appeal to a federal trial court. Instead, they may take their appeal to a state appeals court and, if a federal statute allows, ultimately seek review in this Court. That "basic fact" has been a part of our law for more than 200 years. *Reed* v. *Goertz*, 598 U. S. 230, 244 (2023) (THOMAS, J., dissenting). The Court's opinion thus properly rejects petitioner's quest to reimagine, artificially cabin, or overrule *Rooker-Feldman*. *Ante*, at 676–688. I join it in full. I write separately to explain why *Rooker*, properly understood, is correct as an original matter.

I

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A unanimous three-page opinion, *Rooker* was uncontroversial in its day. It started as an ordinary lawsuit. William and Dora Rooker sued Fidelity Trust Company in state court. See *Rooker* v. *Fidelity Trust Co.*, 191 Ind. 141, 143, 131 N. E. 769, 770 (1921). The trial court entered judgment against the Rookers. *Id.*, at 154–155, 131 N. E., at 773. The Rookers sought review in the State Supreme Court and lost. *Id.*, at 163, 131 N. E., at 776. This Court denied certiorari. *Rooker* v. *Fidelity Trust Co.*, 259 U. S. 580 (1922). The Rookers then sought review from this Court on a writ of error instead. *Rooker* v. *Fidelity Trust Co.*, 261 U. S. 114, 116 (1923). But, the Court declined to grant relief on their claims of constitutional errors in the state-court judgment and dismissed the writ. *Id.*, at 116–118.

Unsatisfied, the Rookers filed a bill in equity in Federal District Court. *Rooker*, 263 U. S., at 414. They asked the Federal District Court to declare the state trial court's judg-

ment "null and void" on the ground that it "was rendered and affirmed in contravention of the" Constitution. *Id.*, at 414–415. The District Court dismissed the bill for lack of jurisdiction, and this Court affirmed that "plainly" correct decree. *Id.*, at 415, 417. "Under the legislation of Congress," this Court recognized, "no court of the United States other than this Court could entertain a proceeding to reverse or modify the judgment for" constitutional errors. *Id.*, at 416. "To do so would be an exercise of appellate jurisdiction." *Ibid.* "The jurisdiction possessed by the District Courts is strictly original." *Ibid.* Accordingly, the Court held that district courts have no jurisdiction to "get rid of" state-court judgments even "for alleged errors of law." *Ibid.*

Rooker was thus based on two premises. See *ante*, at 676–678, 679–681. First, "to reverse or modify the" allegedly erroneous judgment of another court is to "exercise . . . appellate jurisdiction." *Rooker*, 263 U. S., at 416. Second, "[t]he jurisdiction possessed by the District Courts is strictly original"; only "this Court" has "appellate jurisdiction" over state-court judgments. *Ibid.* From these two premises, it follows that district courts lack jurisdiction to reverse or modify the allegedly erroneous judgments of state courts. The conclusion follows from the premises, so the only question is whether the premises are true.

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II

Rooker's first premise was recognized long before *Rooker*, and its second has been an indubitable "fact of federal statutory law" for more than 200 years. *Reed*, 598 U. S., at 244 (opinion of THOMAS, J.).

A

The power to revise or modify another court's judgment or decree has been recognized as an exercise of appellate jurisdiction from before the ratification of the Constitution.

1

The Constitution vests the "judicial Power" in this Court and in the "inferior Courts" that Congress creates. Art. III, § 1. The jurisdiction of federal courts to exercise that judicial power is limited to "Cases" and "Controversies." § 2, cl. 1. That jurisdiction, in turn, comes in two types: "original" and "appellate." § 2, cl. 2. If a court exercises appellate jurisdiction, it does not exercise original jurisdiction. *Marbury* v. *Madison*, 1 Cranch 137, 175 (1803); 3 J. Story, Commentaries on the Constitution of the United States § 1698, p. 574 (1833) (Story).

Original jurisdiction is "[a] court's power to hear and decide a matter before any other court can review the matter." Black's Law Dictionary 856 (7th ed. 1999). In a typical original case, a plaintiff sues a defendant. The plaintiff complains of an injury that the defendant's allegedly illegal conduct caused and "seeks a remedy that runs against the defendant." *Reed*, 598 U. S., at 243 (opinion of THOMAS, J.). The case is "original" inasmuch as there is no earlier proceeding in which another court had already "determine[d] that defendant's duties or liabilities (*e. g.*, a judgment for money damages or an injunction)." *Ibid.*

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Unlike the plaintiff in a typical original action, the appellant in a typical appeal cannot simply complain of an injury that the other party caused before a court has spoken. Instead, "the subject matter" under consideration "has been already instituted in, and acted upon, by some other court." 3 Story § 1755, at 627. As the party who lost in the other court, the appellant "complain[s] of an injury caused by" that court's allegedly erroneous judgment. *Exxon Mobil Corp.* v. *Saudi Basic Industries Corp.*, 544 U. S. 280, 291 (2005). He thus seeks to invoke the court's jurisdiction to remedy an injury of that description and, ordinarily, the appellate court cannot directly redress the injury that caused the plaintiff to file his original suit. The remedy, instead, consists in "cor-

recting that judicial action (*e. g.*, reversal or vacatur of the challenged judgment)," not in awarding damages. *Reed*, 598 U. S., at 244 (opinion of THOMAS, J.).

When a party asks one court to revise another's judgment, he invokes what the Constitution calls "appellate Jurisdiction." Art. III, § 2, cl. 2. Appellate jurisdiction is a court's "power to revise the judgments rendered" by other courts. 1 J. Kent, Commentaries on American Law 353 (11th ed. 1867) (Kent); accord, 3 W. Blackstone, Commentaries on the Laws of England 56 (1768) (Blackstone) ("reverse judgments in certain suits originally begun in [another] court"); *ibid.* (high court had appellate jurisdiction to correct "mistake[s] of the law, committed by [other] courts"); W. Rawle, A View of the Constitution 241 (2d ed. 1829) (Rawle) ("revision of the [decisions] of other courts"); 3 Story 626 (power to "revis[e] and correc[t] the proceedings in a cause already instituted"); 1 G. Curtis, Commentaries on the Jurisdiction, Practice, and Peculiar Jurisprudence of the Courts of the United States § 113, p. 131 (1854) (Curtis) (same); Black's Law Dictionary 79 (1891) (same); 1 A. Burrill, A New Law Dictionary 79 (1850) ("review the proceedings of another [court]"). For that reason, exercising that revising power over the judgments of "state tribunals" in cases involving "[federal] questions" is appellate in nature. 1 Kent 353.[1]

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The Founders accepted this straightforward account of appellate jurisdiction without reservation. The Articles of Confederation gave the Confederation Congress authority to

[1] To "revise" originally meant to "review" for error. 2 N. Webster, An American Dictionary of the English Language (1828); The Federalist No. 81, p. 489 (C. Rossiter ed. 1961) (A. Hamilton). The revising power did not require literally changing another court's judgment. See, *e. g.*, *Ex parte Bollman*, 4 Cranch 75, 101 (1807) ("grant[ing]" motion "for a *habeas corpus* to the marshal of the district of Columbia," even though it did not change the lower court's order, is an exercise of "appellate" jurisdiction); Black's Law Dictionary 331 (12th ed. 2024) ("A petition for a writ of habeas corpus is one type of collateral attack"); *infra*, at 695–698.

create courts with "appellate power . . . to be exercised in revising the decisions of state tribunals" in cases of captures. *Martin* v. *Hunter's Lessee*, 1 Wheat. 304, 345 (1816) (Story, J., for the Court); see Art. IX. In 1780, Congress created a court whose jurisdiction allowed it to "hear new evidence without deference to state courts'" legal conclusions. W. Pryor, The Appellate Jurisdiction Clause, in The Heritage Guide to the Constitution 499 (3d ed. 2025) (Pryor). That power was "appellate" in nature precisely because it was the "power to revise the decisions of state courts." *Hunter's Lessee*, 1 Wheat., at 345; 3 Story 605–606.

When the Founders deliberated about whether to replace the Articles with the Constitution, all maintained the same view about the nature of appellate jurisdiction. At that time, different "technical sense[s] ha[d] been affixed to the term 'appellate'" such that any technical interpretation would "not be understood in the same sense" in different jurisdictions. The Federalist No. 81, pp. 488–489 (C. Rossiter ed. 1961) (A. Hamilton). That fact showed "the impropriety of a technical interpretation." *Id.*, at 489; accord, *ante*, at 681. Instead, the Federalists thought that the term "appellate jurisdiction" in the proposed Constitution "denotes nothing more than the power of one tribunal to review the proceedings of another, either as to the law or fact, or both." The Federalist No. 81, at 489. For their part, the Anti-Federalists seemed to agree. They worried that "appellate jurisdiction," as used in the Constitution, would authorize civil-law "appeals," which involved the power to "reexamine the whole merits of" a previously initiated case, including review of facts. 2 H. Storing, The Complete Anti-Federalist 433 (1981); see also *United States* v. *Wonson*, 28 F. Cas. 745, 750 (No. 16,750) (CC Mass. 1812) (Story, J.). All appeared to agree, however, that "the revising power" of a court is "appellate" in nature. *Hunter's Lessee*, 1 Wheat., at 344.

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Traditionally, the "most usual modes of exercising appellate jurisdiction" were "by a writ of error, or by an appeal."[2] 3 Story § 1756, at 627. But, courts could also exercise appellate jurisdiction through writs of habeas corpus or mandamus, provided that granting such a writ would involve revising the decision of another court on the merits. *Ibid.*; 1 Curtis § 113, at 131; *Marbury*, 1 Cranch, at 175. Today, this Court usually exercises appellate jurisdiction by writs of certiorari. 28 U. S. C. §§ 1257(a), 1254(1). But, it also hears "appeal[s]," in some cases, § 1253, applications for stays of lower court judgments, in others, § 2101(f), and even petitions for mandamus, § 1651(a).

Thus, whether jurisdiction is appellate turns not on the specific mode of proceeding but on the nature of the relief sought. See *Reed*, 598 U. S., at 244 (opinion of THOMAS, J.). Scholars and jurists have long recognized that "*any* . . . mode in which the judgment or proceedings of an inferior tribunal c[ould] be revised" was an exercise of appellate jurisdiction. 1 Curtis § 113, at 131 (emphasis added). A court therefore acts as "a court of appeal" whenever it "correct[s] the errors of other jurisdictions," 3 Blackstone 55, whatever the mode "by which a cause is transmitted to" it, *Wonson*, 28 F. Cas., at 748; accord, 3 Story § 1755, at 627 ("[W]here the object is to revise a judicial proceeding, the mode is wholly immaterial").

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[2] A writ of error was "a process of common law origin; and it remove[d] nothing for re-examination, but the law." 3 Story § 1756, at 628. In the technical sense, an appeal was "a process of civil law origin, and remove[d] a cause, entirely subjecting the fact, as well as the law, to a review and a re-trial." *Id.*, at 627–628. But, "appeal" is also used "in legal language to denote the nature of appellate jurisdiction, as distinguished from original jurisdiction, without any regard to the particular mode, by which a cause is transmitted to a superior jurisdiction." *United States* v. *Wonson*, 28 F. Cas. 745, 748, 750 (No. 16,750) (CC Mass. 1812) (Story, J.). In that sense, writs of error were exercises of appellate jurisdiction at common law; appeals were exercises of appellate jurisdiction in equity.

This Court has long understood that to exercise the revising power is to exercise appellate jurisdiction, regardless of the form of the exercise.

Most law students learn as much on the first day of constitutional-law class. In *Marbury* v. *Madison*, the Court considered whether it had the jurisdiction "to issue a mandamus" compelling "an officer for the delivery of" Marbury's judicial commission when no other court had before entertained the cause. 1 Cranch, at 175. Writing for the Court, Chief Justice Marshall held that the Court lacked such jurisdiction. The Constitution, he said, "define[d] the jurisdiction of the supreme court by declaring the cases in which it shall take original jurisdiction, and that in all others it shall take appellate jurisdiction." *Ibid.* These categories, he reasoned, are mutually exclusive: "[I]n one class of cases its jurisdiction is original, and not appellate; in the other it is appellate, and not original." *Ibid.* Because the Constitution did not give the Court original jurisdiction to issue mandamus, the Court could do so only if it would "be an exercise of appellate jurisdiction" in the case before it. *Ibid.*

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The form of proceeding was not dispositive of the question. Even though mandamus was often issued in original cases, and the case was filed first in the Supreme Court, the Court agreed that "appellate jurisdiction may be exercised in a variety of forms, and that if it be the will of the legislature that a mandamus should be used for that purpose, that will must be obeyed." *Ibid.* Because "a mandamus may be directed to courts," the question became whether, in context, granting mandamus relief would be appellate in nature. *Ibid.*

On the facts of the case, the exercise of jurisdiction was original in nature. There was no decision of another court that this Court could revise. Chief Justice Marshall recognized that it "is the essential criterion of appellate jurisdiction, that it revises and corrects the proceedings in a cause already instituted." *Ibid.* To issue mandamus "to an offi-

cer for the delivery of a paper, is in effect the same as to sustain an original action for that paper, and therefore seems not to belong to appellate, but to original jurisdiction." *Id.*, at 175–176; accord, *ante*, at 681.

From *Marbury*'s holding, then, a clear principle emerged: When a court "revises" or "corrects the proceedings in a cause already instituted," it exercises appellate jurisdiction; when there is no previous "cause" or judicial proceeding to revise, it exercises "original" jurisdiction. 1 Cranch, at 175. And, from *Marbury*'s reasoning, another principle followed: A court can exercise appellate jurisdiction even if the action is filed outside of the most common appellate forms, such as a writ of error or a modern appeal, provided that there is another court's decision to be revised. *Ibid.*

Chief Justice Marshall reaffirmed both principles for the Court just a few years later. See Rawle 227–228. *Ex parte Bollman*, 4 Cranch 75 (1807), involved two individuals—Bollman and Swartwout—who were implicated in the infamous Burr conspiracy. Both had been jailed by the circuit court for the District of Columbia pending their trial. *Id.*, at 75–76. And, each sought a writ of habeas corpus from this Court. *Id.*, at 75. The question, as in *Marbury*, was whether this Court had jurisdiction to issue the writs. This time the Court held that it had such jurisdiction.

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The arguments before the Court concerned the nature of original and appellate jurisdiction. Counsel for Bollman argued that the Judiciary Act gave "this court the power to grant writs of *habeas corpus*," and that "congress had authority, by the constitution," to give the Court such power. 4 Cranch, at 84–85. But, this second point, he argued, depended on "whether this power or jurisdiction be in its nature original or appellate." *Id.*, at 85. He conceded that, if granting the writ would be an exercise of original jurisdiction, then Congress could not give this Court the power to issue the writ. *Id.*, at 85–86. "This principle," he acknowledged, had been "established by the case of *Marbury* v. *Mad-*

ison." *Id.*, at 86. Following *Marbury*, he argued that the "criterion which distinguishes appellate from original jurisdiction, is that it revises and corrects the decisions of another tribunal." 4 Cranch, at 86. And, the "object of the *habeas corpus* now applied for," he urged, "is to revise and correct the proceedings of the Court below . . . so far as respects the legality of such commitment." *Ibid.*

Again writing for the Court, Chief Justice Marshall agreed with this approach. He began by explaining that federal courts, as creatures of "written law," cannot "transcend th[e] jurisdiction" that is "defined by written law." *Id.*, at 93. "[F]or the meaning of the term *habeas corpus*," he said, "resort may unquestionably be had to the common law; but the power to award the writ by any of the courts of the United States, must be given by written law." *Id.*, at 93–94. So, the question was the same as in *Marbury*: "whether by any statute, compatible with the constitution of the United States, the power to award [the] writ . . . has been given to this court." 4 Cranch, at 94.

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This time, though, Chief Justice Marshall answered yes. The Judiciary Act, he concluded, purported to give "the power to award writs of *habeas corpus* in order to examine into the cause of commitment." *Id.*, at 100. And, he "acknowledged that the writ was sought in the first instance in the Supreme Court." Pryor 500. But, the Constitution did not stand in the way of the Court's issuing the writ in the case before it. Though "the *mandamus* case" of *Marbury* required that the Court "would not exercise original jurisdiction," he explained, "that which the court is now asked to exercise is clearly *appellate*." 4 Cranch, at 100–101. He reasoned that the "decision that the individual shall be imprisoned must always precede the application for a writ of *habeas corpus*." *Id.*, at 101. In other words, a court had already addressed the issue of the imprisonment, so there was "a cause already instituted." *Marbury*, 1 Cranch, at 175. Because "this writ must always be for the purpose of

revising that decision," he concluded that it is "therefore appellate in its nature." 4 Cranch, at 101.

* * *

Thus, both *Marbury* and *Bollman* support *Rooker*'s first premise that to reverse or modify the allegedly erroneous judgment of another court is to exercise appellate jurisdiction. Federal courts must inquire into the nature of the jurisdiction a party seeks to invoke and whether it takes "an appellate form," regardless of the label placed on the paper filed in the court. *Ex parte Watkins*, 7 Pet. 568, 573 (1833) (Story, J., for the Court); accord, *ante*, at 681. And, they further explain that "seek[ing] to revise the acts of" another court is "appellate" in nature. *Ex parte Watkins*, 7 Pet., at 573. Whether the court hears the claim in the form of a mandamus petition as in *Marbury*, a habeas petition as in *Bollman*, or a bill in equity as in *Rooker*, if a party asks one court to revise the judgment of another court for errors of law, it invokes appellate jurisdiction. The question is then whether the court has revising power to "declar[e]" a state-court judgment "a nullity [on the merits]." *Voorhees* v. *Jackson*, 10 Pet. 449, 474 (1836).

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B

Congress has long given only this Court, and not inferior courts, appellate jurisdiction to revise state-court judgments.

The Constitution defines the limits of this Court's jurisdiction. Its "original Jurisdiction" is limited to "Cases affecting Ambassadors, other public Ministers and Consuls, and those in which a State shall be Party." Art. III, §2, cl. 2. In "all" other cases, "in Law and Equity," this Court "shall have appellate Jurisdiction," subject to any "Exceptions, and under such Regulations as the Congress shall make." §2, cls. 1–2. Only this Court "possesses jurisdiction derived immediately from the constitution." *United States* v. *Hudson*, 7 Cranch 32, 33 (1812).

As creatures of statute, inferior federal courts "possess no jurisdiction but what is given them by the power that creates them." *Ibid.* They have "none" beyond what Congress "authorize[s]." *Ibid.* Whether inferior federal courts have revising power thus depends on whether a statute says that they do. C. Williams, Jurisdiction and Practice of Federal Courts 433 (1917) (Williams). Today, statutes say that courts of appeals have revising power over district-court judgments, 28 U. S. C. § 1291, and that district courts have revising power over bankruptcy-court judgments, § 158(a)(1).

Since the founding, there has been no doubt that inferior "federal" courts have the power "to review the proceedings of" "State courts" only if Congress, in its "discretion," has given them "appellate jurisdiction" to do so.[3] The Federalist Nos. 81, 82, at 488–490, 493–495 (A. Hamilton); see also *Hudson*, 7 Cranch, at 33. Congress "is not limited by the constitution to any particular mode, or time of exercising it," but there must be a statutory grant of revising power over state-court judgments before inferior courts can revise them. *Hunter's Lessee*, 1 Wheat., at 349; accord, 3 Story § 1755, at 627 ("any form, which the legislature may choose to prescribe").

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Congress has never purported to give inferior federal courts general revising power over state-court judgments for errors of federal law. The First Congress declared that, in federal-question cases, "a final judgment or decree" of "the highest court of law or equity of a State" "may be reexamined and reversed or affirmed in" this Court. Judiciary Act of 1789, § 25, 1 Stat. 85–86. Congress called that revising power "appellate jurisdiction" and identified the mode as a writ of error. §§ 13, 25, *id.*, at 80–81, 85–86. It gave no other federal court revising power over "courts of the several states." § 13, *id.*, at 81. And, it gave no other

[3] In fact, the only dispute was whether such jurisdiction was constitutional even *if* Congress purported to authorize it. See The Federalist No. 82, at 494–495 (A. Hamilton).

federal court civil federal-question jurisdiction, either. Cf. §§ 9, 11, *id.*, at 76–79. Thus, only state courts could exercise original jurisdiction in federal-question cases, and only this federal Court could revise their judgments.

It took Congress 86 years to give federal district courts federal-question jurisdiction, but it limited that jurisdiction to original actions. See *Schweiker* v. *Chilicky*, 487 U. S. 412, 420–421 (1988). In 1875, Congress granted federal courts "original" jurisdiction, "concurrent with the courts of the several States," over federal-question cases. Act of Mar. 3, 1875, ch. 137, § 1, 18 Stat. 470. But, that grant of original jurisdiction was not a grant of revising power. No inferior federal court was "empowered . . . to enjoin the judgment of a State court." D. Chamberlain, The State Judiciary, in Constitutional History of the United States 254 (1889); *id.*, at 253–259. State-court "judgments and decrees" were "subject in all cases . . . arising under the Constitution," or federal law, "to the revising or appellate jurisdiction of the Supreme Court . . . , but in all other cases controlled only by the constitutions and laws of the respective States." *Id.*, at 259.

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Nothing relevant has changed since 1875.[4] See *Atlantic Coast Line R. Co.* v. *Locomotive Engineers*, 398 U. S. 281, 286 (1970). Thus was the state of the law before *Rooker*. 263 U. S., at 416; Act of Mar. 3, 1911, §§ 24–27, 36 Stat. 1091–

[4] Arguably, modern federal habeas-corpus practice has drifted in the direction of appellate review of state-court judgments. See *Harrington* v. *Richter*, 562 U. S. 86, 97–98, 100–101 (2011). I have my reservations about this development. See *Wright* v. *West*, 505 U. S. 277, 285–293 (1992) (opinion of THOMAS, J.). But, it at least has the advantage of some grounding in statutory language, unlike petitioner's desired exercise of appellate jurisdiction here. Compare 28 U. S. C. § 2254(a) (federal courts "shall entertain an application for a writ of habeas corpus in behalf of a person in custody pursuant to the judgment of a State court only on the ground that he is in custody in violation of the Constitution or laws or treaties of the United States") with § 1331 ("The district courts shall have original jurisdiction of all civil actions arising under the Constitution, laws, or treaties of the United States").

1094; Act of Sept. 6, 1916, ch. 448, § 2, 39 Stat. 726; Williams 48–49 ("The appellate jurisdiction [of district courts] is very slender"). And, it remains true today that district courts have only "original jurisdiction" in federal-question cases, 28 U. S. C. § 1331, and that only this Court has appellate jurisdiction over state courts in such cases, § 1257(a). See *ante*, at 676. Congress specified no mode for district courts to exercise appellate jurisdiction in federal-question cases, § 1331; the only federal court authorized to do so over state courts is this one—"by writ of certiorari," § 1257(a).

A district court therefore cannot "act as an appellate Court" to revise state-court judgments. *Smith* v. *McIver*, 9 Wheat. 532, 535 (1824) (Marshall, C. J., for the Court). To do so by "declar[ing]" a state-court judgment "void" for errors of federal law "usurps the jurisdiction of an appellate court." *Voorhees*, 10 Pet., at 474.

III

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As "creatures of a distinct government," "state courts are not, in any sense of the word, *inferior*" to inferior federal courts. *Bollman*, 4 Cranch, at 97. From the founding, state courts have had original jurisdiction in federal-question cases, and their judgments in such cases could be revised only in state appellate courts or in this Court. *Ante*, at 684–686. Congress did not give federal district courts revising power over state-court judgments by giving them only original jurisdiction in federal-question cases. Grants of "original jurisdiction" do "not authorize district courts to exercise appellate jurisdiction." *Verizon Md. Inc.* v. *Public Serv. Comm'n of Md.*, 535 U. S. 635, 644, n. 3 (2002). *Rooker* thus "correctly applied the simple legal proposition that only this Court may exercise appellate jurisdiction over state-court judgments." *Lance* v. *Dennis*, 546 U. S. 459, 467 (2006) (Stevens, J., dissenting). The Court reaffirms that longstanding proposition. *Ante,* at 676–679. I therefore join its opinion in full.